

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALEXANDER HERNANDEZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, P.O. MALDONADO,
P.O. LAMAR, SGT. PRINCE (Shield No. 5596) and
"JOHN DOES" No.'s 1 - 5, being fictitious
and unknown police officers of the New York City
Police Department,

Defendants.
-----X

Index No.:

Date Filed:

SUMMONS

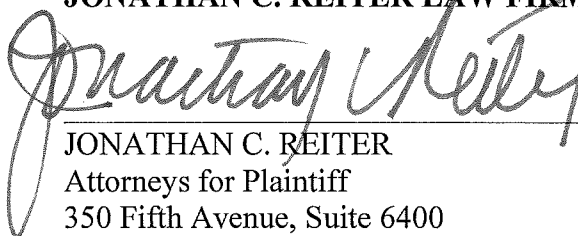
**Plaintiff designates KINGS
County as the place of trial.**

To the above named defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service, or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York and in case of your failure to appear or answer, judgment will be taken by default for the relief demanded in the complaint.

Plaintiff designates Kings County as the place of trial. The basis of venue is plaintiffs' residence and the location of all occurrences alleged herein. Plaintiff resides at 6216 Mill Lane, Brooklyn, New York 11234.

JONATHAN C. REITER LAW FIRM, PLLC



JONATHAN C. REITER
Attorneys for Plaintiff
350 Fifth Avenue, Suite 6400
New York, New York 10118
(212) 736-0979

Defendants Addresses

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. MALDONADO
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. LAMAR
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SGT. PRINCE (Shield No. 5596)
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

JOHN DOES No.'s 1-5
c/o THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY KINGS

-----X
ALEXANDER HERNANDEZ

Index No.:

Plaintiff,

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, P.O. MALDONADO,
P.O. LAMAR, SGT. PRINCE (Shield No. 5596) and
"JOHN DOES" No.'s 1 - 5, being fictitious
and unknown police officers of the New York City
Police Department,

Defendants.
-----X

Plaintiff, ALEXANDER HERNANDEZ by his attorneys, JONATHAN C.
REITER LAW FIRM, PLLC, complaining of the defendants, alleges, upon information
and belief, as follows:

PRELIMINARY STATEMENT

1. This action is brought pursuant to 42 U.S.C. §§1983 and 1988, the Fourth,
and Fourteenth Amendments to the United States Constitution, and Article I, §§11 and 12
of the New York State Constitution for violations of civil rights, assault, battery,
excessive force, personal injuries, harassment, aggravated harassment, intimidation,
emotional distress, breach of fiduciary duties, negligence, unreasonable search and
seizure, and wrongful acts by: POLICE OFFICER MALDONADO (hereinafter referred
to as "MALDONADO," whose first name is currently unknown to plaintiff), individually
and in her respective capacity as a member of the New York City Police Department;
POLICE OFFICER LAMAR (hereinafter referred to as "LAMAR," whose first name is

currently unknown to plaintiff), individually and in his respective capacity as a member of the New York City Police Department; POLICE SGT. PRINCE, Shield No. 5596 (hereinafter referred to as “PRINCE,” whose first name is currently unknown to plaintiff), individually and in his respective capacity as a member of the New York City Police Department; POLICE OFFICERS JOHN DOES No.’s 1-5 (hereinafter referred to as “JOHN DOES,” said names being fictitious and whose identities are currently unknown to plaintiff), individually and in their respective capacities as members of the New York City Police Department; and THE CITY OF NEW YORK. All of the foregoing parties are hereinafter referred to collectively as “defendants.”

2. Plaintiff alleges herein three specific incidents of police misconduct involving assault and battery and continuing acts of harassment, intimidation, retaliation threats and intentional, reckless and negligent infliction of fear, anxiety and mental distress. The first incident took place on May 4, 2013, at approximately 2:00 – 3:30 p.m. and occurred on the roadway of East 59th Street between Avenue O and Avenue N, Brooklyn, New York. The second incident took place on May 18, 2013, at approximately 5:00 – 6:00 p.m. and occurred on the sidewalk of Glenwood Road between E. 79th Street and E. 80th Street, Brooklyn, New York. The third incident took place on May 22, 2013 at approximately 11:30 a.m. on the sidewalk of 105th Street and Farragut Road, Brooklyn, New York.

3. That at the aforesaid times, as further particularized below, plaintiff was harassed, abused, threatened, battered and assaulted, was caused to sustain serious injuries, was subjected to an unreasonable, unlawful and unconstitutional search,

intimidated, and was the recipient of excessive force, without just cause or provocation, by Defendants MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5.

4. Plaintiff further alleges that defendants THE CITY OF NEW YORK, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, are individually, jointly and severally liable for violations of plaintiff ALEXANDER HERNANDEZ's constitutional rights in that the said defendants have:

(a) exhibited deliberate indifference to defendants' MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5's intimidation, brutality and abuse of authority toward similarly situated members of the community at large;

(b) tolerated, condoned and encouraged a pattern of brutality, harassments or other civil rights violations and still are hostile to similarly situated members of the community at large;

(c) failed to properly and adequately monitor and investigate such incidents and to supervise and discipline the employees involved;

(d) created an environment and culture in which members of the New York City Police Department (hereinafter "Police Department") are encouraged to conceal the misconduct of its members, resulting in the current situation in which members of the Police Department believe they can violate with impunity the rights of persons such as plaintiff ALEXANDER HERNANDEZ; and

(e) inadequately selected, trained, monitored and supervised police officers in their employ.

5. That prior to commencement of this action and within 90 days of the occurrences herein, on June 7, 2013, plaintiff ALEXANDER HERNANDEZ served a

Notice of Claim in writing, upon the defendant THE CITY OF NEW YORK, in accordance with Section 50-e of the General Municipal Law.

6. That more than (thirty) 30 days have elapsed since the presentation of the within claim and that adjustment or payment thereof has been neglected or refused.

7. That an examination under oath pursuant to Section 50-h of the General Municipal Law will be held pursuant to the Stipulation between plaintiff and defendant THE CITY OF NEW YORK dated May 1, 2014 (annexed hereto).

8. That this action was commenced within one year and ninety days after the happening of the events upon which the claims herein are based.

9. That plaintiff has complied with all of the prerequisites for bringing this action.

PARTIES

10. That plaintiff, ALEXANDER HERNANDEZ, was at all times relevant herein, a resident of the County of Kings, City and State of New York.

11. That defendant THE CITY OF NEW YORK was a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

12. That defendant THE CITY OF NEW YORK was responsible for the practices, policies and customs of the New York City Police Department.

13. That defendant THE CITY OF NEW YORK was responsible for the hiring, screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department.

14. That the New York City Police Department was an agency of defendant THE CITY OF NEW YORK.

15. That defendants MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, are and were at all times relevant herein, officers, employees and agents of the defendant THE CITY OF NEW YORK.

16. That defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, are being sued individually and in their official capacity.

17. That at all times relevant, the above referenced defendants herein were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the Police Department and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the defendant, THE CITY OF NEW YORK, and at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the defendant, THE CITY OF NEW YORK and incidental to the pursuit of their duties as officers, employees and agents of the defendant, THE CITY OF NEW YORK.

18. That defendant THE CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers, as said risk attaches to the public consumers of services provided by THE CITY OF NEW YORK.

ALLEGATIONS COMMON TO ALL CAUSES OF ACTION

19. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

FIRST INCIDENT – MAY 4, 2013

20. That on or about May 4, 2013, at approximately 2:00 – 3:30 pm, plaintiff was a pedestrian on the roadway of East 59th Street between Avenue O and Avenue N, Brooklyn, New York.

21. At that time, plaintiff was struck and knocked to the ground by a black motor vehicle driven by an unknown white female.

22. That the driver refused to identify herself to the Plaintiff.

23. That while still at the accident scene, the unknown driver made a telephone call with her mobile phone.

24. That upon information and belief, the unknown driver called her brother who it is alleged to be a New York City Police Officer Assigned to the 63rd Precinct in Brooklyn, New York.

25. That approximately 10 – 15 minutes after the above call was placed, three New York City Police Officers assigned to the 63rd Precinct arrived at the aforesaid location.

26. That one officer is identified as defendant MALDONADO, a Hispanic female.

27. That the second officer is identified as defendant LAMAR, a male.

28. That the third officer, defendant JOHN DOE No. 1, is identified as a white male.

29. That upon information and belief, defendant JOHN DOE No. 1 is the brother of the white female who was driving the vehicle that struck the plaintiff.

30. That defendant JOHN DOE No. 1, said to the plaintiff that the white, female driver was his sister.

31. That defendant JOHN DOE No. 1, told the plaintiff he must not report the accident to the Police Department.

32. That defendant JOHN DOE, No. 1, further told the plaintiff that he must not go to the hospital.

33. That defendant JOHN DOE, No. 1, told the plaintiff that if plaintiff did not get off the ground and leave the accident scene, JOHN DOE, No. 1, would "hand cuff" plaintiff and "throw" plaintiff in the back of the squad car, "kill" the plaintiff and "dump his body" somewhere.

34. That defendant JOHN DOE, No. 1, then directed the white, female driver to leave the accident scene.

35. That the plaintiff then went to a nearby pay telephone and called his father to ask his father to take plaintiff to the hospital.

36. That while the plaintiff was on the telephone with his father, defendant JOHN DOE, No. 1 grabbed the telephone's receiver out of the plaintiff's hand and hung up the receiver to end the call.

37. That defendant JOHN DOE, No. 1 then ordered the plaintiff to leave the area.

38. That the three officers, defendants MALDONADO, LAMAR and JOHN DOE, No. 1, then departed.

39. That plaintiff went to the emergency room of Beth Israel Medical Center – Kings Highway Division, Brooklyn, New York, where he was examined and treated for injuries sustained when he was struck by the unknown vehicle.

40. That these injuries included head and facial injury, fracture of facial bone(s), and multiple bruises, contusions and other injuries.

41. That plaintiff reported the aforesaid incident of May 4, 2013, to the Internal Affairs Bureau of the NYPD and met with investigative personnel from the Internal Affairs Bureau.

42. That plaintiff identified the three officers involved in the aforesaid incident of May 4, 2013, from a photo array.

43. That upon information and belief, the Internal Affairs Bureau commenced an investigation into the aforesaid occurrence.

44. That this complaint was assigned IAB Log Number 2013-20-370.

SECOND INCIDENT – MAY 18, 2013

45. That on or about May 18, 2013, at approximately 5:00 – 6:00 pm, while the plaintiff was walking along the sidewalk on Glenwood Road between E. 79th Street and E. 80th Street, Brooklyn, New York, he was assaulted and battered by three New York City Police Officers, defendants JOHN DOE No. 2, JOHN DOE No. 3 and JOHN DOE No. 4.

46. That at the aforesaid time and place, plaintiff was punched, beaten, struck with batons and other objects and hit about the head, face and body by defendants JOHN DOE No. 2, JOHN DOE No. 3 and JOHN DOE No. 4.

47. That defendants JOHN DOE No. 2, JOHN DOE No. 3 and JOHN DOE No. 4, are identified, respectively, as a Hispanic male, a bald headed white male and a second white male police officer.

48. That while plaintiff was being assaulted and battered by defendants JOHN DOE No. 2, JOHN DOE No. 3 and JOHN DOE No. 4, defendants JOHN DOE No. 2, JOHN DOE No. 3 and JOHN DOE No. 4, told plaintiff that the beating was a “second warning.”

49. That defendants JOHN DOE No. 2, JOHN DOE No. 3 and JOHN DOE No. 4, further told plaintiff that if plaintiff did not drop “the charges” against the original three officers involved in the May 4, 2013, incident (defendants MALDONADO, LAMAR and JOHN DOE, No. 1), the next time defendants JOHN DOE No. 2, JOHN DOE No. 3 and JOHN DOE No. 4, saw plaintiff, they were going to “kill him.”

50. That plaintiff went to Beth Israel Medical Center – Kings Highway Division, Brooklyn, New York to be treated for the injuries sustained during this attack, including laceration of the head requiring stitches, and multiple bruises and contusions of the head, body and limbs.

51. That plaintiff also reported the aforesaid attack of May 18, 2013 to the Internal Affairs Bureau.

52. That the aforesaid attack of May 18, 2013, was assigned IAB Log Number 2013-21-431.

THIRD INCIDENT – MAY 22, 2013

53. That on or about May 22, 2013 at approximately 11:30 am as plaintiff and his father were on the sidewalk at 105th Street and Farragut Road, Brooklyn, New York,

defendant PRINCE, a New York City Police Sergeant, and defendant JOHN DOE, No. 5, a New York City Police officer, stopped plaintiff without just cause or other legal reason.

54. That defendant PRINCE illegally searched the Plaintiff without probable cause.

55. That plaintiff was not in possession of any illegal items.

56. That defendant PRINCE then asked Plaintiff if he had any drugs to which plaintiff responded that he did not.

57. That defendant JOHN DOE No. 5, thereafter continued to search the plaintiff.

58. That defendant PRINCE ordered plaintiff's father to leave the aforesaid location.

59. That defendant PRINCE uttered threatening and intimidating remarks to plaintiff to attempt to instill fear in him.

60. That during the aforementioned incidents of May 4, 2013, May 18, 2013 and May 22, 2013, the aforesaid defendants, identified above, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, individually and while in the course and scope of their employment with the New York City Police Department, and acting under color of law and under the authority of the City of New York, were engaged in a conspiracy to willfully, wantonly, maliciously, and intentionally threaten, intimidate, assault and commit a battery upon plaintiff, and to intentionally, maliciously and recklessly inflict severe emotional distress upon plaintiff in retaliation for his complaint(s) to IAB and in an attempt to have him drop charges against the police officers involved.

61. That the wrongful acts and wrongful conduct of the defendant officers consisted of, but were not limited to the following: facilitating a criminal act by directing the unknown white female and the plaintiff to leave the scene of a motor vehicle accident and ordering the Plaintiff to not report the accident and to not seek medical treatment for his injuries and in failing to call for medical assistance for the Plaintiff; violently threatening plaintiff with physical harm; perpetrating a vicious assault and battery upon plaintiff by beating him with batons and fists; using unreasonable, unnecessary and excessive force against plaintiff; committing a harmful, offensive and un-consented to attack upon plaintiff's person; unlawfully and without probable cause detaining and searching the plaintiff; in continuing to threaten, harass, coerce and attempt to instill fear in the plaintiff; in illegally obtaining access to plaintiff's medical/hospital records and suborning and influencing medical personnel to change diagnoses.

62. That the above described acts violated Plaintiff's civil rights and were committed in willful and wanton disregard of the Plaintiff's Civil Rights under the Constitution of the United States of America and the State of New York and other federal and state laws, including but not limited to the Health Insurance Portability and Accountability Act (HIPAA).

63. That upon information and belief, the New York City Police Department and the police officers described above failed to follow the rules and regulations of the New York City Police Department in responding to a motor vehicle accident and in the use of force and that the City of New York failed to promulgate proper rules and regulations covering actions such as those described hereinabove.

FIRST CAUSE OF ACTION

VIOLATION OF RIGHTS SECURED BY 42 U.S.C. §1983 AND BY THE FOURTH AND FOURTEENTH AMENDMENTS OF THE UNITED STATES CONSTITUTION IN USING UNNECESSARY, EXCESSIVE AND UNREASONABLE FORCE

64. Each and every allegation set forth in the preceding paragraphs is incorporated by reference with the same effect as if fully set forth herein.

65. That on or about May 4, 2013, May 18, 2013 and May 22, 2013, defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, while in the scope of their employment as servants, agents, police officers and/or representatives of the defendant, THE CITY OF NEW YORK, did threaten, harass, coerce and attempt to instill fear in the plaintiff and did use excessive force, violence and brutality against the plaintiff, causing severe injuries and permanent injury in violation of plaintiff's clearly established constitutional rights under the Fourth and Fourteenth Amendments of the United States Constitution.

66. That defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES NO.'s 1-5, conspired, aided, abetted and acted in concert with the other defendants in the aforementioned acts of threatening, harassing, coercing and attempting to instill fear in the plaintiff and in the use of excessive use force and brutality against the Plaintiff.

67. That by reason of the foregoing, plaintiff ALEXANDER HERNANDEZ was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

68. That by reason of the foregoing, plaintiff is entitled to damages sustained to date and continuing as well as punitive damages, costs and attorneys' fees in an amount that exceeds the jurisdictional limits of all lower courts.

SECOND CAUSE OF ACTION

VIOLATION OF RIGHTS SECURED BY 42 U.S.C. §1983 AND BY FOURTH AND FOURTEENTH AMENDMENTS OF THE UNITED STATES CONSTITUTION, UNREASONABLE SEARCH AND SEIZURE

69. Each and every allegation set forth in the preceding paragraphs is incorporated herein by reference with the same effect as if fully set forth herein.

70. That at all times relevant herein, the conduct of all Defendants were subject to the provisions of 42 U.S.C. §§1983 and 1988.

71. That as of May 4, 2013, May 18, 2013 and May 22, 2013, there existed a clearly recognized federal right pursuant to the Fourth and Fourteenth Amendments of the United States Constitution to be free from unreasonable search and seizures, and the use of excessive force by government actors and deprivation of liberty without due process of law.

72. That on May 4, 2013, May 18, 2013 and May 22, 2013, as heretofore alleged, the individual defendants and each of them, acting individually and in concert, while acting under color of state law, conducted an unconstitutional stop and search of the plaintiff without probable cause, and without a warrant.

73. That by reason of the foregoing, plaintiff ALEXANDER HERNANDEZ was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal

expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

74. That by reason of the foregoing, plaintiff is entitled to damages sustained to date and continuing as well as punitive damages, costs and attorneys' fees in an amount that exceeds the jurisdictional limits of all lower courts.

THIRD CAUSE OF ACTION

VIOLATION OF RIGHTS SECURED BY 42 U.S.C. §1983 AND BY THE FOURTH AND FOURTEENTH AMENDMENTS OF THE UNITED STATES CONSTITUTION BY FAILING TO PROTECT THE PLAINTIFF FROM UNCONSTITUTIONAL HARM

75. Each and every allegation set forth in the preceding paragraphs is incorporated by reference with the same effect as if fully set forth herein.

76. That as of May 4, 2013, May 18, 2013 and May 22, 2013, there existed a clearly recognized civil right to be free from wrong and/or illegal acts which would violate the rights guaranteed to the Plaintiff under the constitution and laws of the United States and the State of New York.

77. That the conduct and actions of the defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, acting jointly and severally under color of state law, failing to take any steps to protect Plaintiff from unjustified and unconstitutional assault, harassment, excessive force, and deprivation of liberty, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to cause and did cause specific and serious bodily, mental and emotional harm and pain and suffering in violation of the Plaintiff's constitutional rights as guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

78. That, defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES NO's 1-5, were aware of the aforementioned civil rights violations and wrongful acts being done against the Plaintiff, and they had the duty and the opportunity to protect the Plaintiff from the unlawful actions of the other Defendants, but failed to do so, thereby proximately causing and contributing to plaintiff's injuries.

79. That by reason of the foregoing, plaintiff ALEXANDER HERNANDEZ was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

80. That by reason of the foregoing, plaintiff is entitled to damages sustained to date and continuing as well as punitive damages, costs and attorneys' fees in an amount that exceeds the jurisdictional limits of all lower courts.

FOURTH CAUSE OF ACTION

VIOLATION OF RIGHTS SECURED BY 42 U.S.C. §1983 AND BY THE FOURTH AND FOURTEENTH AMENDMENTS OF THE UNITED STATES CONSTITUTION AGAINST DEFENDANT THE CITY OF NEW YORK

81. Each and every allegation set forth in the preceding paragraphs is incorporated by reference with the same effect as if fully set forth herein.

82. At all times material to this complaint, the Defendant, THE CITY OF NEW YORK, acting through its Police Department, had in effect *de facto* policies, practices, and customs exhibiting deliberate indifference to the constitutional rights of the citizens, residents and occupants of the City of New York that were a direct and

proximate cause of the unconstitutional conduct of defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, and of the resultant official cover-up of the wrong and unconstitutional conduct of defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5.

83. That the *de facto* policies, practices and customs include, *inter alia*: (a) the failure to properly screen, supervise, discipline, transfer, counsel, and/or otherwise control police officers engaged in the excessive and unjustified use of force, threats and intimidation, particularly, those police officers who are repeatedly accused of such acts; (b) the failure to properly train and supervise police officers to avoid the use of punitive, cruel and excessive force and threats and intimidation; and (c) authorizing and ratifying the police code of silence wherein police officers regularly cover-up police use of excessive and unjustified force and threats and intimidation by telling false and incomplete stories, or by failing to report the use of excessive and unjustified force and threats and intimidation by police officers, *inter alia*, in sworn testimony, official reports and in public statements, all of which are designed to cover for and/or falsely exonerate the accused police officers.

84. That upon information and belief, the defendant, THE CITY OF NEW YORK, failed to effectively screen, hire, train, supervise and discipline their police officers, including the defendant police officers herein, for their propensity for violence, including excessive and unjustified force and restraint, lack of truthfulness, threats and intimidation and for their failure to protect citizens from unconstitutional conduct of other police officers, thereby permitting and allowing the defendant police officers herein to be in a position to assault, excessively and unjustifiably restrain the plaintiff, threaten and

intimidate the plaintiff and to otherwise cause him injury and violate his federal and state constitutional rights, and/or to permit these actions to take place with their knowledge or consent.

85. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant THE CITY OF NEW YORK has permitted and allowed the employment and retention of individuals as police officers whose individual circumstances place the public or segments thereof at substantial risk of being the victims of violent or otherwise constitutionally violative behavior.

86. That such policies, practices, customs and/or usages are a direct and proximate cause of the injuries to the Plaintiff.

87. That at all times herein, defendant, THE CITY OF NEW YORK, had authority to address alleged behavior that violated citizens' constitutional rights and to institute corrective measures.

88. That at all times herein, defendant, THE CITY OF NEW YORK, knew or should have known of the harassment and intimidation previously perpetrated by defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES NO's 1-5, against Plaintiff and other similarly situated citizens, and failed to take calculated steps to end the abuse, choosing instead to remain deliberately indifferent to the offending behavior.

89. That by reason of the foregoing, plaintiff ALEXANDER HERNANDEZ was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal

expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

90. That by reason of the foregoing, plaintiff is entitled to damages sustained to date and continuing as well as punitive damages, costs and attorneys' fees in an amount that exceeds the jurisdictional limits of all lower courts.

FIFTH CAUSE OF ACTION

VIOLATION RIGHTS SECURED UNDER THE NEW YORK STATE CONSTITUTION

91. Each and every allegation set forth in the preceding paragraphs is incorporated by reference with the same effect as if fully set forth herein.

92. That the defendants and each of them, in their individual and official capacities, had a duty under the New York State Constitution Article 1 Sections 11 and 12 to prevent and cease the wrongful harassment, intimidation, assault, battery, physical abuse and detainment and other wrongful acts that were committed against plaintiffs.

93. In actively inflicting and failing to prevent the above-stated abuses incurred by the plaintiffs, all of the defendants acted unreasonably, recklessly, and negligently in failing to exercise the slightest amount of due care to secure and protect the civil and constitutional rights of the plaintiffs against illegal search and seizure, physical abuse and detained custody without other due process that the New York State Constitution guarantees to the plaintiffs.

94. That the breach of duty under the New York State Constitution by the defendants was a direct and proximate cause of the aforementioned harm suffered by the plaintiffs.

95. That by reason of the foregoing, plaintiff ALEXANDER HERNANDEZ was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

96. That by reason of the foregoing, plaintiff is entitled to damages sustained to date and continuing as well as punitive damages, costs and attorneys' fees in an amount that exceeds the jurisdictional limits of all lower courts.

SIXTH CAUSE OF ACTION

ASSAULT AND BATTERY UNDER STATE LAW AGAINST INDIVIDUAL DEFENDANTS AND DEFENDANT THE CITY OF NEW YORK

97. Each and every allegation set forth in the preceding paragraphs is incorporated by reference with the same effect as if fully set forth herein.

98. Defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, committed multiple acts of assault and battery against Plaintiff when they threatened, harassed and intimidated plaintiff as aforementioned and caused plaintiff to be assaulted, beaten, physically abused and battered as aforementioned.

99. That the aforescribed acts of intimidation, threats, harassment, physical contact and physical abuse of the plaintiff by the defendants and each of them was not consented to by the plaintiff.

100. That the aforescribed acts of intimidation, threats, harassment and physical contact and physical abuse of the plaintiff by the defendants and each of them were not privileged or otherwise lawful.

101. That the aforesaid acts of intimidation, threats, harassment and physical contact and physical abuse were committed in the course of and in furtherance of and as a result of an unlawful and warrantless, search, seizure and detainment of the plaintiff in violation of plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.

102. That the aforesaid acts of intimidation, threats, harassment and physical contact and physical abuse constituted the use of excessive and unreasonable force by the defendants and each of them.

103. That the individual defendants were acting in the course and scope of their employment as police officers employed by defendant THE CITY OF NEW YORK, and said defendant, THE CITY OF NEW YORK, is liable for individual defendants' wrongful acts under the doctrine of *respondeat superior*.

104. That by reason of the foregoing, plaintiff ALEXANDER HERNANDEZ was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

105. That by reason of the foregoing, plaintiff is entitled to damages sustained to date and continuing as well as punitive damages, costs and attorneys' fees in an amount that exceeds the jurisdictional limits of all lower courts.

SEVENTH CAUSE OF ACTION

NEGLIGENT HIRING, TRAINING AND SUPERVISION UNDER STATE LAW AGAINST DEFENDANT THE CITY OF NEW YORK

106. Each and every allegation set forth in the preceding paragraphs is incorporated by reference with the same effect as if fully set forth herein.

107. At all times relevant herein, Defendant, THE CITY OF NEW YORK, has been grossly negligent and negligent in the hiring, supervision, training and monitoring of its representatives who consult with and counsel police officers who are suspected of crimes and misconduct, or police officers who are witnesses to crimes and misconduct by their fellow officers.

108. At all times relevant herein, defendant THE CITY OF NEW YORK, has been grossly negligent and negligent in the hiring, supervision, training, and monitoring of its officers including but not limited to defendants, MALDONADO, LAMAR, PRINCE and JOHN DOES No.'s 1-5, when defendant THE CITY OF NEW YORK knew or should have known that these police officers were unfit to function properly as police officers of the New York City Police Department.

109. That by reason of the foregoing, plaintiff ALEXANDER HERNANDEZ was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

110. That by reason of the foregoing, plaintiff is entitled to damages sustained to date and continuing as well as punitive damages, costs and attorneys' fees in an amount that exceeds the jurisdictional limits of all lower courts.

EIGHTH CAUSE OF ACTION

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS AGAINST ALL DEFENDANTS

111. Each and every allegation set forth in the preceding paragraphs is incorporated by reference with the same effect as if fully set forth herein.

112. That the aforementioned actions of defendants were so extreme, outrageous, malicious and shocking that they exceeded all reasonable bounds of decency tolerated by the average member of the community.

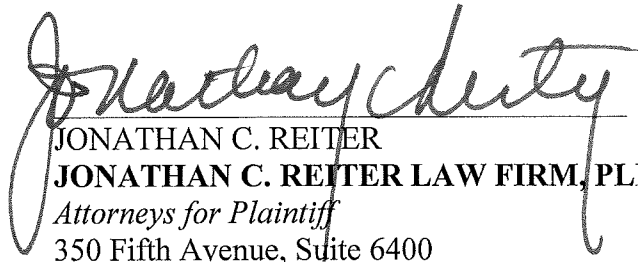
113. That defendants acted with the desire and intent to cause the plaintiff undue emotional distress or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

114. That as a result of the defendants' aforesaid conduct and intentional actions the plaintiff has suffered emotional distress.

115. That by reason of the foregoing, plaintiff ALEXANDER HERNANDEZ was proximately caused to sustain severe and permanent personal injuries, pain, suffering, mental anguish, emotional and psychological distress, anxiety, fear, loss of enjoyment of life, disabilities, medical, hospital and rehabilitative expenses, legal expenses, loss of earnings and impairment of future earning capacity and other economic and pecuniary losses.

WHEREFORE, plaintiff demands judgment in an amount that exceeds the jurisdictional amount of all lower courts from all defendants in each of the above causes of action along with punitive damages and attorney's fees, together with the costs and disbursements of this action.

Dated: New York, New York
May 1, 2014



JONATHAN C. REITER
JONATHAN C. REITER LAW FIRM, PLLC
Attorneys for Plaintiff
350 Fifth Avenue, Suite 6400
New York, New York
(212) 736-0979

VERIFICATION

JONATHAN C. REITER, an attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

He is a member of the JONATHAN C. REITER LAW FIRM, PLLC, attorneys for the plaintiffs in the above-entitled action. That he has read the foregoing COMPLAINT and knows the contents thereof, and upon information and belief, deponent believes the matters alleged therein to be true.

The reason this Verification is made by deponent and not by the plaintiff is that the plaintiff herein is not within the County where plaintiff's attorneys maintain their office.

The source of deponent's information and the grounds of this belief are records, communications, papers, reports and investigations contained in the file.

Dated New York, New York
May 1, 2014


JONATHAN C. REITER

-----X
IN THE MATTER OF THE CLAIM OF

ALEXANDER HERNANDEZ

against

THE CITY OF NEW YORK,
-----X

STIPULATION

Claim # 2013 P1615104

IT IS HEREBY STIPULATED AND AGREED by the attorney for the above named claimant(s) and the Comptroller of the City of New York that:

1) The examination pursuant to General Municipal Law Section 50-h (hereinafter "50-h") of the above named claimant(s) currently scheduled for 10/23/13 is hereby adjourned at the claimant's request. In particular, the claimant alleges that he/she is unable to attend the hearing due to

Incarceration

2) Claimant shall be responsible for notifying the City of New York (hereinafter "City"), by certified or registered mail, return receipt requested within thirty (30) days after the claimant has become available to appear and give testimony at said hearing. The notification shall be sent to the Office of the Comptroller of the City, Bureau of Law and Adjustment, 1 Centre Street - 12th Floor, New York, NY 10007. A copy of this stipulation must be attached to the notification. Upon receipt of the notification, the City shall have ninety (90) days in which to schedule the hearing.

3) Claimant may commence an action against the City on the above claim within the applicable statute of limitations prior to the City conducting a hearing or physical examination of claimant pursuant to 50-h.

4) If claimant commences an action against the City, and/or any of its agents, servants or employees claimant(s)/plaintiff(s) shall make no discovery demands, issue shall not be joined, and the defendant(s) time to serve an answer shall extend until 30 days after proper notification has been made as set forth below that the examination(s) pursuant to 50-h is/are completed.

5) Proper notification that the examination(s) pursuant to 50-h is/are completed must be made by either certified or registered mail return receipt requested or hand delivery addressed to the Office of the Corporation Counsel, 100 Church Street, New York, NY 10007, Attention Deputy Chief of the Early Intervention Unit. The notification must include a copy of this signed stipulation and a notarized copy of the hearing transcript with corrections, if any, and a cover letter requesting that an answer be served.

6) Nothing herein shall be construed as a waiver of the City's rights pursuant to 50-h.

Dated: New York, NY

May 1, 2014

BY: _____

For the City

Alan J. Orma
Attorney for Claimant/Plaintiff

Law Firm of Jonathan C. Reiter
Attorney Firm

F A X

NEW YORK CITY COMPTROLLER
SCOTT M. STRINGER
BUREAU OF LAW ADJUSTMENT
CONTRACT DIVISION

FAX # 212 669 8811

M. Bodner fax 212.815.8558

DATE

4/30/14

PLEASE DELIVER THIS TRANSMISSION IMMEDIATELY

TO GLENN A. HERMAN, ESQ.

FROM: MARILYN BODNER, ESQ.

PAGES FOLLOWING: 1 FAX# 212.268.5297

REMARKS: Pls execute and return to
me @ 212.815.8558. Thanks

mb

* * * Communication Result Report (May. 1. 2014 10:43AM) * * *

1}

Date/Time: May. 1. 2014 10:42AM

File No. Mode	Destination	Pg(s)	Result	Page Not Sent
3599 Memory TX	12128158558	P. 2	OK	

Reason for error

E. 1) Hang up or line fail
 E. 3) No answer
 E. 5) Exceeded max. E-mail size

E. 2) Busy
 E. 4) No facsimile connection
 E. 6) Destination does not support IP-Fax

Law Offices of
 JONATHAN C. RETTER
 EMPIRE STATE BUILDING SUITE 2811
 350 FIFTH AVENUE
 NEW YORK, N.Y. 10118
 TEL: 212-736-0979
 FAX: 212-268-5297

FAX TRANSMISSION

Date:	May 1, 2014
To:	Office of the Comptroller
Attn:	Ms. Marilyn Bodner, Esq.
Fax Number:	212-815-8558
Re:	Claim No. 2013PT015104 - Alexander Hernandez
From:	GLENN A. HERMAN, Esq.
Our Phone:	(212) 736-0979
Our Fax:	(212) 268-5297

# of pages including cover page:	2
----------------------------------	---

COMMENTS:

Following please find signed stipulation regarding 50-hearing. Please sign and fax copy back to me. Thank you.

DOCUMENTS IN THIS TELECOPY TRANSMISSION CONTAIN INFORMATION WHICH IS CONFIDENTIAL AND/OR LEGALLY PRIVILEGED AND IS INTENDED ONLY FOR THE USE OF THE INDIVIDUAL OR ENTITY NAMED ON THIS TRANSMISSION SHEET. IF YOU HAVE RECEIVED THIS TELECOPY IN ERROR, PLEASE TELEPHONE THE SENDER IMMEDIATELY SO THAT WE CAN ARRANGE FOR THE RETURN OF THE MISDIRECTED TELECOPY DOCUMENTS TO US AT NO COST TO YOU. YOU ARE HEREBY NOTIFIED THAT ANY DISCLOSURE, COPYING, DISTRIBUTION OR THE TAKING OF ANY ACTION IN RELIANCE ON THIS TELECOPIED INFORMATION IS STRICTLY PROHIBITED, AND THE DOCUMENTS SHOULD BE RETURNED TO THIS FIRM IMMEDIATELY.